

Contents

Chapter 1: General Consideration.....	1
1.1 Sources of Family Relationships.....	1
1.1.1 Relationship by consanguinity	1
1.4.2 Relationship by Affinity.....	1
1.4.3 Relationship by Adoption	1
1.5 Effect of Family Relationship	1
1.5.1.....	1
Chapter Two: Marriage.....	2
2.1 Betrothal.....	2
2.2 Definition of Marriage	2
2.3 Modes of Conclusion of Marriage	2
2.3.1 Civil Marriage (Marriage Concluded before an Officer of Civil Status).....	2
2.3.2 Religious Marriage (Art 3).....	3
2.3.3 Customary Marriage	3
2.3.4 Marriage Celebrated Abroad.....	3
2.4 Essential Conditions of Marriage.....	4
2.4.1 Consent	4
2.4.2 Age.....	4
2.4.3 Relationship	5
2.4.4 Bigamy.....	5
2.4.5 Period of Widowhood (Art 16)	5
2.5 Opposition to Marriage	5
2.5.1. Who may oppose?.....	5
2.5.2. To whom should Opposition be made	6
2.6 Effects of Violation of Essential Conditions of Marriage.....	7
Chapter 3: Effects of Marriage.....	9
3.1 General overview	9
3.1.1. Contract of Marriage vs. Certificate of Marriage.....	9
3.1.2. Limitation on the contract of marriage.....	9
3.2 Personal effects of Marriage	9

3.3 Pecuniary Effects of Marriage	10
3.3.1 Personal property	10
3.3.2 Common Property of Spouses.....	10
3.3.3 Management of Personal and Common Property of Spouses	11
3.3.4 Debts of Spouses.....	12
Chapter 4: Proof of Marriage	13
4.1 Registration of Marriage	13
4.2 Proof of Marriage by Certificate of Marriage.....	13
4.3 Proof of Marriage by Possession of Status of Spouses (Art 97).....	13
Chapter 5: Dissolution of Marriage	15
5.1. Grounds of Dissolution	15
5.1.1 Dissolution by Operation of the Law	15
5.1.2 Dissolution by Acts of the Parties (Divorce)	15
5.2 Effects of Dissolution of Marriage.....	17
5.2.1 Child Custody	17
5.2.2 Liquidation of Pecuniary Relations.....	17
5.2.3 Partition of Common Property	18
CHAPTER 6: IRREGULAR UNION.....	18
6.1. The Concept of Irregular Union Irregular.....	18
6.2. Why Do People Live in an Irregular Union?	18
6.3. The Need for Legal Protection.....	18
6.4. Legal Effects of Irregular Union	19
6.4.1. Introductory Remarks	19
6.4.2. Legal Effects of Irregular Union.....	19
6.5. Proof of Irregular Union	20
CHAPTER 7: FILIATION	22
7.1. Maternal Filiation (MF)	22
7.1.1. Contestation of Maternal Filiation (Arts.163-166 of RFC).....	23
7.4. Paternal Filiation.....	23
7.4.1. Presumption of Paternity (Art 126-130)	24
7.4.2. Acknowledgment of Paternity/ Voluntary Declaration Of Paternity	24
What is the Difference between Revocation (Art 140) and Annulment (Art 141) of paternity?	27

7.4.3. Judicial Declaration of Paternity (Arts.143-145).....	27
7.4.4. Regulation of Conflict Paternity	29
7.4.5. Disowning.....	30
7.5. Proof of Filiation.....	31
7.5.1. General.....	31
7.5.2. Proof by Record of Birth and Possession of Status.....	31
CHAPTER 8: ADOPTION.....	33
8.1. Introduction.....	33
8.2. Essential Conditions and Effects of Adoption	33
8.2.1 Effects of Adoption.....	34
8.3. Inter-country Adoptions and Safeguards to Children	34
8.3.1 Placement of the Child.....	34
8.3.2 Selection of Adoptive Parents.....	35
8.4Safeguards for Children in Inter-country Adoption	35
8.4.1 Follow-up Work.....	35
8.4.2 The Child’s Right to Identity and Secrecy.....	35
8.4.3 Prevention of Unlawful Acts in Inter-country Adoption	36
8.5. Revocation of Adoption.....	36
CHAPTER 9: OBLIGATION TO SUPPLY MAINTENANCE	36
9.1. Subject Matter of the Obligation.....	36
9.2. Persons between Whom the Obligation Exists	37
9.3. Termination of the Obligation.....	38
CHAPTER 10: SETTLEMENT OF DISPUTES.....	38
10.1. Settlement of Disputes by Court	38
10.2. Settlement by Arbitration.....	39
10.3. Settlement of Other Family Disputes.....	39

Chapter 1: General Consideration

1.1 Sources of Family Relationships

There are three sources of family relationships namely, **Marriage, Filiation** and **Adoption**.

1.1.1 Relationship by consanguinity

Relationship by consanguinity results from the birth. It is ‘the tie which exists between two persons, such as the son and the father, the grandson and the grandfather; or those who descend from a common ancestor, such as two brothers, or two cousins.’

1.4.2 Relationship by Affinity

Relationship by affinity is created as a result of marriage. 'Relatives through marriage are persons who are not relatives, but which join the family by means of a marriage. When a marriage is concluded, the relationship is formed between one of the spouses with the blood relatives of the other spouse.

1.4.3 Relationship by Adoption

Relationship by adoption is created as a result of a special contract between the adopter and the original families of the adopted child.

1.5 Effect of Family Relationship

- **Alimony** is maintenance or means of living allowance.

1.5.1. Rights and Obligations arises from Family Relationships

- Right to succeed
- The right of destitute relatives to get maintenance from the other relatives
- Right to receive Maintenance
- Obligation to provide alimony for the destitute relatives who cannot have their own means of income
- Relatives have the obligation to provide alimony for the destitute relatives who cannot have their own means of income.
- Incapacity to marry a relative

Chapter Two: Marriage

2.1 Betrothal

“A contract of betrothal *is a contract* whereby *two members of two families agree* that a marriage shall take place between two persons, the fiancé and fiancée, belonging to these two families.’ CC, Art 560/1. The concept of Betrothal is against the constitutional right of individuals to form a family with their own free and full consent. Hence FRFC excludes it totally.

However, some regional family codes maintain the concept of betrothal with modification. The major modification made relates to the definition given to betrothal. All the regional laws which incorporated the concept of betrothal defined it as *“a pact between the fiancé and fiancée to conclude marriage sometime in the future.”*

2.2 Definition of Marriage

Marriage may be regarded as either a status or a contract.

- **Marriage is status** refers “it’s a relationship which has a set of legal consequences which flow automatically from that relationship, regardless of the intention of the parties.
- **The status view of marriage** would suggest that, if a couple marry, and then they are subject to the law governing marriage, regardless of their intentions.

Marriage is perhaps best regarded as a mixture of the two. Since, there are some legal consequences which flow automatically from marriage and other consequences which depend on the agreement of the parties.

2.3 Modes of Conclusion of Marriage

Three types of marriage is recognized under RFC; **Civil Marriage, Religious Marriage and Customary Marriage.**

2.3.1 Civil Marriage (Marriage Concluded before an Officer of Civil Status)

It’s a marriage concluded before officer of civil status where, a man and a woman appear to give their respective consent to enter into marriage.

The Civil Code provides for the establishment and the duties of the office of civil status. However, currently there is no established office of civil status.

Formalities and requirements to conclude civil marriage

Civil marriage is concluded before the officer of civil status of the place where one of the future spouses or one of the ascendants or close relatives of one of them has established a residence by continuously living there for not less than six months before the conclusion of the marriage (Art 222).

- ✚ The future spouses shall inform the officer of civil status of their intention to conclude marriage not less than one month prior to its celebration. And the officer shall publicize the same.
- ✚ The purpose of notifying the officer is to make sure that there are no impediments to the conclusion of marriage and to allow anyone who want to oppose to the marriage to do so in accordance with the law.
- ✚ Witnesses shall to declare, under oath, that the essential conditions for marriage are fulfilled before civil officer.
- ✚ The future spouses need to declare openly that they have consented to enter into the marriage

The RFC allowed for the conclusion of marriage through representation by way of exception, if one of the parties, **for serious cause**, could not be personally present. **Serious may mean, when one of the spouses are away on military work or in the navy and sometimes also for prisoners.**

2.3.2 Religious Marriage (Art 3)

A religious marriage takes place when a man and a woman have performed such acts or rites as deemed to constitute a valid marriage by their religion or by the religion of one of them.

The conclusion of the religious marriage as well as the formalities to be followed are as prescribed by the concerned religion. However, the essential conditions that are stipulated by the RFC shall be observed whatever the manner of celebration of marriage is.

2.3.3 Customary Marriage

Marriage according to custom takes place when a man and a woman have performed such rites as deemed to constitute valid marriage **by the custom of the community in which they live** or **by the custom of the community to which they belong** or **to which one of them belong.**

2.3.4 Marriage Celebrated Abroad

RFC is recognized marriages that are celebrated abroad.

The marriage whose recognition is sought in Ethiopia has to be concluded by fulfilling the legal requirements of the place of celebration. Moreover, the law puts public morality of the Ethiopian people as a limitation on the recognition of marriages celebrated abroad.

2.4 Essential Conditions of Marriage

2.4.1 Consent

Marriage is an institution which is to be entered into by the parties with their free and full consent.

Grounds which would vitiate the consent of the spouses

I. Fundamental Error (Art 13)

Consent is deemed to be vitiated as a result of error where such error is a fundamental error.

- 1) Error on the **identity of the spouse**, where it is not the person with whom a person intended to conclude marriage;
- 2) Error on the state of health of the spouse who is affected by **a disease that does not heal or that can be genetically transmitted to descendants**
- 3) Error on the bodily conformation of the spouse who does not have the requisite sexual organs for the consummation of the marriage;
- 4) Error on the behavior of the spouse who has the habit of performing sexual acts with person of the same sex.

II. Violence (Duress)

III. Judicial Interdiction

Judicial interdiction exists in the cases where a person is insane. The court orders interdiction of the person because his health and his interest// his heirs' interest so requires. Thus, these two conditions have to simultaneously be present for the court to give order of interdiction.

An interdicted person may conclude marriage only with the authorization of the court.

2.4.2 Age

The UN Convention on Consent to Marriage, Minimum age of Marriage and Registration of Marriage the minimum marriageable age in any country will be 15 years, though it can be set at higher age than this.

Under RFC, the minimum marriageable age is 18 years for both sexes. However, **exceptionally** if the Minister of Justice, for serious cause, grants for dispensation, on application of the future spouses, or the parents or guardian of one of them, marriage could be validly concluded. The maximum year that can be dispensed by the Minister is 2 years, and hence, the lowest age of marriage can be 16 years.

2.4.3 Relationship

The restrictions under the RFC are based on two groups of relations: based on blood relationships/consanguinity and relation based on marriage/affinity.

Marriage between persons related by consanguinity in the direct line between ascendants and descendants (parent and child) is prohibited.

In the collateral line a man cannot conclude marriage with his sister or aunt; similarly, a woman cannot conclude marriage with her brother or uncle. On the collateral line, marriage between a man and the sister of his wife, and a woman and the brother of her husband is also prohibited.

2.4.4 Bigamy

The other essential condition for the conclusion of a valid marriage is the absence of prior marriage.

2.4.5 Period of Widowhood (Art 16)

A woman is under prohibition to remarry within the next one hundred and eighty days following the dissolution of her former marriage (Art 16). The rationale for the limitation under article 16 is to respect the right of children enshrined in the Constitution by avoiding any circumstances which would create a doubt as to who the father of that child is.

Exceptional Circumstances where the 180 days restriction need not be observed, where:

- 1) The woman gives birth to a child after the dissolution of her marriage and before the lapse of the 180 days.
- 2) The woman remarries her former husband
- 3) It is proved by medical evidence that the woman is not pregnant
- 4) The court dispenses the woman from observing the period of widowhood.

2.5 Opposition to Marriage

Depending on the essential condition which is violated, the persons who may oppose to the conclusion of the marriage differ.

2.5.1. Who may oppose?

When the condition violated is age, there are potentially three groups of persons who are given the right to oppose:

1. **The Parents of the Minor.**

2. **The Public Prosecutor:** Sometimes underage marriages are arranged by the parents of the minor by themselves in such a circumstance **the Public Prosecutor** has the right to oppose the underage marriage.
3. **Any Other Interested Person:** the law gives ‘**Any Other Interested Person**’ a right to oppose the underage marriage.

Any Other Interested Person refers to those parties who may be directly or indirectly affected by the conclusion of the underage marriage. E.g. Those NGOs which are working on the prevention of underage marriages.

When the essential condition violated is relationship by consanguinity or affinity, the right to oppose the marriage is given to:

1. **The ascendants of both or one of the future spouses** as well as their brothers and sisters who have attained the full age of 18 years.
2. **Public Prosecutor**, to safeguard the interest of the society and the state

In cases of bigamous marriages, there are two persons who may oppose:

1. **The previous wife or husband** of the bigamous spouse.
2. **The public prosecutor**, since Bigamy is considered under the criminal code of 2004 as a crime, unless it is justified by the religion or custom of the person.

In the case of judicial interdiction who may oppose to the marriage is:

1. The guardian of the interdicted person and
2. The public prosecutor

2.5.2. To whom should Opposition be made

Opposition shall be made to the organ which has celebrated such the marriage. The opposition shall be made in a written form.

The future spouses shall inform the officer of civil status of their intention to conclude marriage not less than one month prior to its celebration. And the latter has the obligation to publicize the same.

Opposition to marriage shall be made in writing and submitted to the officer of civil status within fifteen days from the notification of the marriage (Art 19). However, when it comes to the other modes of

conclusion of marriage, this kind of stipulation is not provided, making observance of this article somehow impractical.

Appeal from the decision on opposition

The officer of civil status shall decide on the opposition within five days. If the celebrating officer rejects the opposition and decides to continue the celebration of the marriage, **the decision will be final one.** However, if the decision is to accept the opposition and suspended the celebration of the marriage, the future spouses or one of them may appeal to the court against the decision.

2.6 Effects of Violation of Essential Conditions of Marriage

As far as the consequence of violation of essential conditions is concerned, ***we may classify the conditions into three categories.***

The first categories of impediment; is the impediment to the celebration of the marriage which does not affect its subsequent validity, its purpose being only prohibitory. The first condition which falls under this category is period of widowhood.

Unlike other legal systems the Ethiopian law recognizes only voidable marriages. A marriage which has been concluded when one or more of the essential conditions are lacking will be invalidated. However, we should keep in mind that this assertion does not work for all conditions.¹ That is to say, from the date of invalidation, the marriage will cease to exist, and the consequences of dissolution of marriage will follow. However, for the time being that the marriage was intact, it will be considered as a valid marriage.

The second categories of impediment; Impediments which will prevent the marriage from taking place and make the marriage voidable if it takes place, but for reasons occurring after the marriage, the impediments cease to exist and the marriage becomes valid.

The marriage which is voidable after its celebration due to a defect therein can subsequently become valid through the ex facto removal of the impediment or by the passage of time. This process is known as validation.

Those marriages which are voidable, but may be validated include underage marriages, bigamous marriages, marriages concluded by judicially interdicted persons, marriages concluded under the influence of violence, marriages concluded in the existence of fundamental error.

¹For instance, in the case of violation of period of widowhood, the marriage will not be invalidated.

A person who concluded marriage with an underage, knowing that she has not attained the minimum marriageable age stipulated under the family law, will be subject to rigorous imprisonment for not more than three years. This is so if the victim is 13 years and above. However, if the victim is below 13 years, the punishment will be a rigorous imprisonment not more than seven years

Bigamous Marriages: - the bigamous marriage also falls into the category of marriages which are voidable but validatable. Since, the application for dissolution may be made only as long as the former spouse of the bigamous marriage is alive. If however, the former wife dies, it can be validated. Bigamy is criminally punishable (Art 650 CrC)

In case of a judicially interdicted person, unless an application is made within the specified time the marriage will be validated. The JIP may not apply for dissolution six months after the date of termination of his/her disability. And as for the guardian, the application has to be made within six month after the day on which the guardian becomes aware of the existence of marriage, and in any case after the disability has ceased. Otherwise the marriage will be validated

When the consent is vitiated as a result of an act of violence, the party who concluded the marriage under the influence may apply to the court to order the dissolution. Such an application may not be made six months after the cessation of such violence and, in any case, two years after the conclusion of the marriage. Otherwise the marriage will be validated.

In case where the consent was vitiated by error, whosoever has concluded marriage due to fundamental error may apply for the dissolution of the marriage. The application has to be made within six months after the discovery of the error. Otherwise the marriage will be validated

The third category of impediments is absolute impediments;

Under this falls relationship by consanguinity and affinity. ‘These obstacles are so grave that they can never be cured and therefore the marriage can never be validated...if a couple are married despite this impediment their marriage remains voidable.’⁹³ Review Questions That means it may be dissolved at any time. The public prosecutor and any other interested person are given the right to apply for the dissolution of such marriage.

Chapter 3: Effects of Marriage

3.1 General overview

One thing that needs to be always taken into account is the fact that all marriages produce the same legal effect, **without considering the mode of their celebration**, as far as the marriage is concluded in compliance with the essential conditions of marriage.

The consummation of marriage is not a condition for the marriage to have legal effect (Art 41).

Contract of marriage is a premarital agreement, also referred to as an **ante-nuptial** or **pre-nuptial** agreement, is a contract entered into by a man and woman before they marry. The agreement usually describes what each party's rights will be if they divorce or if one of them dies. **The agreements may avoid uncertainties and fears about how a divorce court might divide property if the marriage fails.'**

3.1.1. Contract of Marriage vs. Certificate of Marriage

Certificate Marriage refers to the document to be drawn by the officer of civil status which shows the conclusion of marriage of the parties.

Contract of Marriage is a contract which is signed by the spouses before or on the date of their marriage for the purpose of regulating their personal relations and the pecuniary effect of their marriage.

3.1.2. Limitation on the contract of marriage

The parties are not allowed to derogate from the mandatory provisions of the law. Since, contract of marriage is signed by the parties to regulate their relationship, and not the relationship between the spouses with third parties. Hence, this limitation was imposed in the law.

The contract of marriage has to be made in a written form and needs to be attested by four witnesses, two from each side. The contract also has to be deposited with the court or the office of civil status. The failure to deposit the document should not make the document to lose its validity; rather it will not have effect on third parties.

3.2 Personal effects of Marriage

Marriage produces special obligations between the husband and the wife as a result of their status as spouses.

1. Respect, Support and Assistance
2. Family Management
3. Duty of fidelity

4. Cohabitation (Art 53)

The spouses are bound to live together and to cohabit. However, the spouses may agree to live separately for a definite or indefinite-period of time. E.g. one of the partners may have to leave for study or on the job.

One of the purposes of formation of marriage is to establish life in common. The unjustifiable refusal to have sexual relations with the spouse constitutes a violation of the obligations of marriage. The unjustifiable refusal to have sexual relations with the spouse constitutes a violation of the obligations of marriage. The RFC also requires the spouses to have sexual relations normal in marriage unless these relations involve a risk of seriously prejudicing their health.

If the spouses could not reach to agreement regarding their residence, it may be referred to family arbitrators as it can be considered as dispute arising out of marriage (Art 118).

3.3 Pecuniary Effects of Marriage

To determine as to whom the owner of a particular property is. As mentioned earlier, contract of marriages play a great role. However where there is no contract of marriage or if the contract is invalidated the law intervene. Thus, the RFC governs the pecuniary relations of spouses.

3.3.1 Personal property

The property which the spouses possess on the day of their marriage, or which they acquire after marriage by succession or donation will be personal property of the successor or donee.

In principle properties acquired by onerous title after marriage through the exchange of personal property will remain to be personal property of the spouses (Art 58/1). However, for this principle to work, the party claiming to retain the personal property has to apply for the declaration of the court of such facts. Failure to get the declaration has the effect of making the property common property.

✚ The mere fact of conclusion of marriage will not create common property regime. There is the possibility of retaining and having personal property.

3.3.2 Common Property of Spouses

1. Income of the spouses

The sources of such income can be three: *personal efforts/income acquired through employment*, *income derived from the common property*, or *income derived from personal property*. Income of the

spouses is made common property because it is the means of living of the spouses themselves as well as the children.

Do you think pension benefit is a common property?

In so far as the employee contribution is made during the marriage, there is no doubt that the four percent contributed each month is a marital property. This is because the contributed money is part of the salary, which is common property of spouses.

2. Property acquired during marriage by an onerous title

All property which has been purchased by the spouses or either of them during their marriage will be considered as common property. But only when the court, at the request of one of the spouses, has decided that the property thus acquired shall be owned personally by such spouse.

✚ *All property in the marriage will be considered as the common property, unless the other spouse proves otherwise (Art 63), even if the property is registered in the name of only one spouse (like house, vehicle).*

What is the fate of a house whose construction was finalized after the conclusion of marriage, but the land on which to construct the house was obtained prior to marriage by one of the spouses?

Private ownership of urban land has been abolished and land is the property of the state. Hence, there cannot be separate estimation of the price of the house and the land. Hence, what matters is not the time in which the land was acquired, rather whether there was sharing of burden in the construction of the house. Thus it is common.

3.3.3 Management of Personal and Common Property of Spouses

Each spouse is to administer his respective personal property. However, through the contract of marriage, administration of the property may be entrusted on the other spouse (Art 59). Moreover, there is also the possibility of assigning the other spouse through the contract of agency.

As per art 73, *Contracts entered into between spouses during marriage shall be of no effect unless approved by the court.*

Does the contract of agency concluded between the spouses for the administration of the personal property of one of the spouses required to be approve by the court? The contract of agency entered in

between the spouses for the administration of personal property of one of them will not require, unlike other contracts, the approval of the court.

Can the husband or the wife dispose of a common property without the knowledge of the other spouse?

The law has restricted the freedom of the spouses to transact with third parties, by requiring the existence of consent of both spouses for alienating any common property in any manner, be it by sale, donation, exchange or other.

What will be the fate of a contract which is concluded in violation of such stipulation?'

Article 1808 of the Civil Code provides for the grounds of invalidation of a contract and as to who may request for the invalidation of the contract. As such, it is only a party to a particular contract who may request invalidation.

If one of the spouse entered into contract of disposal of the common property without the knowledge of the other spouse, such spouse can request invalidation within six months in which the other spouse came to know the existence of the contract or in other cases within two years after the obligation has been entered.

3.3.4 Debts of Spouses

Debts of spouses may be classified either as personal debt or debt incurred in the interest of the household.

If the debt is a personal debt incurred by one of the spouses, third parties will first proceed on the personal property of the indebted spouse. However, if the indebted spouse does not have personal property, the debt will be recovered from the common property of the spouses (Art 70/1). The reason for allowing recovery of personal debt from common property seems to be the need to give creditors wider right.

Debts incurred in the interest of the household are considered as joint and several debts and will primarily be recovered from the common property of the spouses. Here, if the common property is not enough to cover the debt, the creditor may proceed to the personal property of either of the spouses. Since the spouses have the obligation to support each other and contribute to the household during their marriage.

Chapter 4: Proof of Marriage

“If a person desires to draw a juridical consequence from the existence of a marriage, he must begin by proving its celebration.”

4.1 Registration of Marriage

The Revised Family Code declares mandatorily that marriage shall be registered by a competent officer of civil status, irrespective of the form of celebration of marriage (Art 29/1). The officer of civil status who has celebrated the marriage has also the obligation to issue a certificate of marriage to the spouses.

Note that: the effects of marriage begins at the time of conclusion of marriage and not at the time of issuance of marriage certificate. The law accommodates a situation in which the certificate might be issued at a later time.

Article 321 stipulates for the establishment institutions of civil status (who are charged for registration of marriage) in areas where the code has application, within six months from the coming into force of the code. However, this institution is not yet established. However, until the establishment of the Office of Civil Status, article 321/2 gives the mandate for appropriate authorities of the administration to issue certificate of marriage.

4.2 Proof of Marriage by Certificate of Marriage

The certificate of marriage issued by the officer serves as a primary means of proving the celebration of marriage.

The law obliged the officer of civil status to register all marriages either at the time of celebration or even after the celebration either by application or its own motion whenever he becomes aware of the marriage.

Civil marriages will be registered at the time of celebration whereas the registration of religious and customary marriages is to be performed after their celebration either upon the application of the spouses or upon the officer's own motion.

4.3 Proof of Marriage by Possession of Status of Spouses (Art 97)

Marriages may not be registered with the appropriate organ or certificate duly drawn may be lost or destroyed. In such circumstances, the law, by way of exception, allows proving marriage by possession of status.

‘A man and a woman are deemed to have the possession of status of spouses when they mutually consider themselves and live as spouses and when they are considered and treated as such by their family and the

community' (Art 96). So, in proving the existence of marriage through the possession of status, the opinions of the spouses themselves, their family and the community is pertinent. **The major question which needs to be considered here is as to what is to be proved.**

The fact to be proved by the family is not the possession of status or their living together as spouses, but they must testify their acceptance as spouses. Logically, it is believed that the family will commonly accept the parties as spouses because of their participation in marriage ceremony, seeing observable evidences about conclusion of marriage, and etc.

What is expected of the witnesses is to show to the court that the parties treat themselves as spouses, that the family and other persons treat them as married and that they know of the celebration of the marriage at some point in time. One cannot reach to a conclusion as to the existence of marriage without ascertaining the celebration of marriage, because doing so would confuse marriage with irregular union.

Chapter 5: Dissolution of Marriage

5.1. Grounds of Dissolution

Most of the time marriages are concluded to last forever, but due to several reasons it could be dissolved. Generally grounds of dissolution can be classified into; ***Dissolution by Operation of the Law*** and ***Dissolution by Acts of the Parties***.

5.1.1 Dissolution by Operation of the Law

- 1) Death of one of the spouses
- 2) Declaration of absence of one of the spouses by the court
- 3) Dissolution order by court due to violation of one of the essential conditions of marriage

5.1.2 Dissolution by Acts of the Parties (Divorce)

The law classified divorce into two; ***Divorce by Mutual Consent*** and ***Divorce by Petition***. In both types of divorce, an application has to be made to the court. i.e., the power of declaring divorce is given only to the court.

5.1.2.1 Divorce by Mutual Consent

The RFC allows parties to petition for divorce by agreement. The intervention of the court is limited to counseling the spouses separately to renounce their divorce. If the parties are not willing to renounce the divorce, the court may order a cooling period.

The divorce by mutual consent is not necessarily a divorce without a cause. The spouses may have, and in many situations, do have causes for separation. However, under the mutual consent divorce, they are not obliged to divulge their reasons to the court.

The court, at the time of approving their request, has to make sure that the agreement to divorce is the true expression of the intention and free consent of the spouses as well as that the agreement is not contrary to law or morality (Art 79 & 80).

5.1.2.2 Divorce by Petition

The other way of ending the conjugal union by divorce is when one of the parties requests the court to end the marriage. Unlike the CC, the RFC provides for optional arbitration of family disputes. Art 82:

1. Where the petition for divorce is made the court shall advise the spouses to renounce
2. Where the advice is not work court may direct the spouses to settle their dispute through arbitrators of their own choice

3. Where the spouses did not agree to settle their dispute through arbitration, the court may dismiss the parties by giving them a cooling period of up to three months.
4. Where these attempts have failed, the court shall pronounce divorce within one month from the receipt of the reports or arbitrators, or the end of the cooling period, as the case may be.

Civil code provides for compulsory arbitration, the code compels resort to arbitrators whenever there is a family dispute by making family conflicts out of the jurisdiction of the regular courts **except when they come by way of appeal.**

From the time the petition for divorce is brought before it, the court shall forthwith give temporary order regarding the maintenance of the spouses, the custody and maintenance of their children and the management of their common property.

For dissolution of marriage, divorce, is to be pronounced only by the court. When the law allows various ways of entering marriage which takes into account the custom and religion of the parties concerned, such option is not open for divorce.

Defacto Divorce: where spouses have lived separately for long time will be a ground to presume that the marriage has been dissolved, even if the divorce is not pronounced by the court (cassation decision).

Can one of the spouses request divorce through their representatives (lawyers)?

One of the obligations of the court is to speak to the spouses either separately or jointly. Allowing divorce through representation will make this requirement of the law meaningless. Moreover, marriage in its very nature is very personal. **However**, the court granted the divorce, allowing divorce by representation only in exceptional circumstances.

The Federal Family Code as well as the regional codes follows the no-fault divorce approach.

እዚህ ላይ መነሳት ያለበት ሌላው ነጥብ በተሻሻለው የቤተሰብ ሕግ የፍቺ ምክንያቶች ከባድና ሌሎች ብሎ መከፋፈል ተቀባይነት ያላገኘ ቢሆንም የፍቺው ምክንያት ምንነት በአሁኑ ህግ ፋይዳ የለውም ማለት አይደለም፡፡ የፍቺው ምክንያት ለፍቺው አስፈላጊ ባይሆንም ለውጤቱ በተለይም ለጋራ ንብረት ክፍፍል ግን ግምት ውስጥ ሊገባ ይችላል፡፡ ለምሳሌ ፍቺው የተጠየቀው አንደኛው ወገን በፈፀመው ዝመና ወይም ድብደባ ምክንያት ከሆነ ፍቺው ተወስኖ በሚደረገው የንብረት ክፍፍል ወቅት ንብረቱ በእኩል መከፋፈል ቀርቶ ይህንኑ ጥፋት ግምት ውስጥ ያስገባ ክፍፍል ሊከናወን ይችላል ማለት ነው፡፡

Where the cause of the divorce is imputable to one of the spouses and where justice so requires, the court may order such spouse to make good the damage sustained by the other spouse (Art 84).

Are we going to consider the damage caused by the termination of the relationship or the damage caused by the fault that leads to the termination of the relationship?' It is not the damage caused by the divorce but the damage caused by the fault that leads to the termination of marriage.

5.2 Effects of Dissolution of Marriage

5.2.1 Child Custody

When a marriage is dissolved through divorce, one of the questions which need to be answered by the court is as to who should have custody of those minor children. Such determination should be based on the principle of the ***“Best Interest of the Child”*** which is enshrined under the constitution and the CRC.

✚ ***Tender Years Principle*** says Children under five years of age will be placed with their mother unless there is a reason for not doing so.

Guideline to decide the question of custody under the RFC (Art 221)

- 1) If the divorce is made by mutual consent, the parties are expected to determine the consequences of their divorce, including custody of their children, by their agreement.
- 2) Where, in any case of divorce, the spouses did not agree on the tutorial and guardianship of their children, the court which decides the divorce shall also decide the tutor and guardian of children.

The best interest of the child requires one to consider the view of the child, if the child is in a position to manifest his wishes.

When seeking the opinion of the child, two factors need to be considered.

1. The first one is age of the child. The court has to be sure that the child has reached the age group in which he can make a reasonable preference.
2. The second essential thing which needs to be considered is the environment in which the child's preference is to be obtained. The presence of the parents may intimidate the child, and hence it is better if the court interviews the child without the presence of the parents.

5.2.2 Liquidation of Pecuniary Relations

One of the issues which need to be addressed by the court at the time of pronouncing divorce is the partition of the matrimonial property.

The law has given discretion for the spouses to agree upon the management and the partition of property of their property.

There is a presumption that all property in marriage is common property of the spouses. The spouse who claims to be the personal owner of the particular property in question has to prove the fact.

5.2.3 Partition of Common Property

The rule is that partition will be made in kind in such a way that each spouse receives some property from the common property; any inequality will be set off by the payment of sums of money (Art 91). If the property is difficult or impossible to divide, or alternatively if the spouses do not agree as to who should have the property, it will be sold and the proceeds will be divided between them.

CHAPTER 6: IRREGULAR UNION

6.1. The Concept of Irregular Union

Union is the union of a man and woman established solely by the consent of both parties. Like the institution of marriage, it is intended to be potentially indefinite in duration and the parties cohabit in the same household as a man and wife.

An irregular union is the state of fact which is created when a man and a woman live together as husband and wife without having concluded a valid marriage (Art 98). **As the definition depicts irregular union is established where the relationship is analogous to marriage.**

6.2. Why Do People Live in an Irregular Union?

Some couples feel that the commitments and burdens of marriage outweigh its advantages and hence engage in irregular union. The other reason is that no costly legal procedures are required to establish and terminate the relationship. Besides, irregular union, as a de facto relationship, gives the opportunity to define and specify the terms of their relationship individually.

6.3. The Need for Legal Protection

Generally, legal regulation of marriage serves four state interests: promoting public morality, ensuring family stability, assuring support obligations and assigning responsibility for the care of children.

The FDRE Constitution is not concerned with irregular union nor does it recognize it specifically as it did so with marriage. However, the silence of the constitution about irregular union does not amount to non-recognition. Since the constitution does not specifically deny recognition to it, protecting and regulating irregular union by enacting specific law is not contrary to the ideals of the constitution.

The reality on the ground as to irregular union is that a number of people are presently involved in this relationship. Many people enter into this kind of relationship due to:

- Economic problems,
- Inability to get the assent of their parents for marriage,
- Failure to fulfill customary obligations,
- Inability to cover expenses for wedding ceremonies and the like.

Hence, denial of such reality is impossible since to do so would be tantamount to “closing one’s eyes not to see the visible social reality.”

6.4. Legal Effects of Irregular Union

6.4.1. Introductory Remarks

The 1960 Civil Code as well as the current family laws of Ethiopia does not say anything about the essential requirements for the formation of a valid irregular union. Although the laws are silent, it is not possible to say that anyone under any condition whatsoever can form irregular union, as he pleases.

How about period of widowhood and the existence of another irregular union?

6.4.2. Legal Effects of Irregular Union

IU recognized under CC and the RFC. However, the RFC have made departures from the CC. The major departure is the creation of community property.

A) Absence of Bond of Affinity

Valid marriage creates a bond of affinity between the man and the relatives of the woman and vice versa.²

In contradistinction to marriage, as provided in Art.100 of the RFC in irregular union, a bond of affinity is created neither between the man and the relatives of the woman nor between the woman and the relatives of the man. However, sub-article 2 of the above article provides that the legal impediments to a lawful marriage in the case of affinity are applicable to it.

- ✚ But is it not contradictory, to say that there is no bond of affinity in irregular union on the one hand and prohibit marriage between the man and the relative of the woman or marriage between the woman and the relatives of the man on the other hand? Obviously, there is a clear contradiction. However, despite this contradiction the prohibition is justified on the ground of policy considerations.

² Consequently, marriage between person related by affinity in the direct line and marriage between a woman and the brother of her husband or marriage between a man and the sister of his wife is forbidden.

(B) Duty to Contribute to the Common Expenses

(C) Community Property

Under the 1960 Civil Code irregular union could not create community property. *Under the current family laws, irregular union has been made to give rise to community property between the cohabitants provided the relationship lasts for three years or more.*

Cohabitants in irregular union cannot agree that no community property is created during their union.

All actions for sale, exchange, rent out, pledge, mortgage or alienation in any other way of the common property need the consent of both the man and the woman in the union.

(D) Debts of the Man and the Woman in Irregular Union

6.5. Proof of Irregular Union

The mode of proof of marriage is certificates of marriage and possession of status. However, proof of irregular union, the primary and frequent mode of proof is **Possession of Status** as opposed to documentary evidence.

Possession of status is said to have comprised three facts known as “**Nomen**”, “**Tractus**”, and “**Fama**”.

1. **Nomen:** is the fact of having the name which indicates the status;
2. **Tractus:** is the fact of being generally reputed as having the status by all persons with whom family or business relations took place;
3. **Fama:** is the fact of being generally recognized and treated by the public as having the status.

RFC provided that possession of status as the only mode of proof of irregular union. “*A man and a woman may have the possession of the status of persons living in an irregular union when, although they are not married, they behave as such, and when their families and the community consider them living as married couple (Art 106/2)*”

Three facts have to be proved to constitute possession of status of persons living in an irregular union. These are

1. The fact that the man and the woman behaved as married people
2. That they are considered as married people by their families and
3. The fact that both are considered as married persons by the community

As far as the law is concerned, possession of status of spouses is distinguished from possession of status of persons living in an irregular union in two ways.

- A. In the case of possession of status of persons living in an irregular union, it is not a requirement that the man and the woman should mutually consider and treat each other as husband and wife.

Therefore, the witnesses called upon to prove the state of fact of irregular union are not required to prove the fact that the parties have lived together mutually considering themselves as married people. However, this is a requirement when it comes to possession of status of spouses.

- B. The fact of the celebration of the marriage in one of the forms of marriage (civil, religious or customary) should also be proved as an additional requirement (spouses considering themselves as married people as a result by the community and the family). This additional requirement obviously distinguishes proof of marriage by possession of status of spouses and proof of irregular union by possession of status of persons living in an irregular union for what has to be proved in case of irregular union is that the man and the woman behaved as married people and are regarded as such by their families and the community.

In proof of marriage the fact of the celebration of the marriage need to be established by witnesses.

CHAPTER 7: FILIATION

The law should do whatever possible to ascertain both parents since the child, inter alia, has the right to know and be cared for his or her parents which is clearly provided in Art.36(1) of the FDRE Constitution.

7.1. Maternal Filiation (MF)

Maternal filiation results from the sole fact that the woman has given birth to a child (Art 124). Thus, a woman who is not in a position of proving that she did give birth to a certain child will not be able to do it by other means such as acknowledgment.

Maternal filiation is the basis for the whole consanguinal relationship since the relationship of kinship by blood emanates from this very relationship. Since, the status of being brother and sister, father and child is established only after the establishment of maternal filiation.

Modes of Paternal Filiation

- 1) *PF results from the maternal filiation when a relation provided for by the law has existed between the mother and a certain man at the time of the conception or the birth of the child.*
- 2) *It may result from an acknowledgement of paternity made by the father of the child.*
- 3) *It may also result from a judicial declaration.*

MF is this basic formula, for the establishment of paternity. Pursuant to Art 125(1) of the RFC, the presumption of paternity flows from maternity. Hence, the ascertainment of the mother is a necessary requirement to attribute a certain child to a given person in all modes of establishment of paternity.

A person will be a father of a child because of the presumption if such a man had relationship provided by law with the mother.

An acknowledgement of paternity made by the father of the child presupposes the acknowledgment of the mother to the effect that the declaration of the person is well-founded.

The court declares a defendant to be a father of a child if the court is satisfied that the requirements provided under Art.143 of the RFC are fulfilled.

Artificial Insemination: is a mechanism to fertilize the ovum and sperm outside the body and transplant the embryo into the uterus of a third party or the “hostess” who carries the child for the duration of pregnancy and then give birth to it.

In Ethiopian Family law it is the one who bore the child that may be considered to be the mother. We can, therefore, speak of birth only in relation to the “hostess”. The contributor of the ovum may not be considered to have given birth to a child. In the absence of the fact of birth, she cannot possibly be a mother of such child delivered from the “hostess” even if it is her own ovum that was actually fertilized.

The agreement that may be made between the interested parties to consider the contributor of the ovum the mother is an agreement which does not seem to be acceptable. The rules on the establishment of filiation cannot be avoided by the agreement of the parties unless there is an express provision authorizing such an agreement (see Art 123).

7.1.1. Contestation of Maternal Filiation (Arts.163-166 of RFC)

- 1) The maternal filiation of the child may be contested at any time by any interested person.
- 2) The action to contest filiation may not be instituted except with the permission of the court. Thus, permission of the court must be obtained before the petition could be instituted.
- 3) Such permission shall not be granted unless there are presumptions or **indications resulting from concrete facts** enabling the court to grant permission.

Permission to institute an action to contest filiation may not be granted; where the filiation of the child results from the **certificate of birth** and is **corroborated by a possession of status**,

The petitioner must show that either of the elements necessary for the establishment of maternal filiation is missing. Thus, she will have to show to the court either:

- 1) That the woman was not confined at the time when the child was born and/or
- 2) Even if the woman was confined at the time when the child was born, the child whom she delivered is not the one whose status is in question

7.4. Paternal Filiation

The modes of ascertainment of paternity are divided into three:

1. Presumption of paternity
2. Acknowledgement paternity
3. Judicial declaration

7.4.1. Presumption of Paternity (Art 126-130)

This is the first mode of ascertaining paternity. The presumption is attached to a person who may happen to be the husband of the mother of the child or the man in an irregular union at the time of conception or birth.

The first element of presumption of paternity is the existence of legally prescribed unions between man and woman (Marriage or Irregular Union).

The second element of presumption is birth or conception within the legally provided union. Accordingly, paternal filiation is established if at the time of conception or birth of the child the mother had relations provided by law with a certain man.

The reason behind for the presumption of paternity; “that a child conceived or born during an irregular union has as father the man engaged in such union/ husband of the mother of the child” is that the existed **cohabitation** among the spouses and person and a woman. Thus, it is based on the probability that the child is born of the man/husband in such a union.

But the question here is as to how we can know that a child is conceived in a marriage or regular union?

Duration of pregnancy is strictly limited under the Ethiopian family law and can be used as a test for paternity. A child shall be deemed to have been conceived in wedlock if it is born more than 180 days after the celebration of the marriage and less than 300 days after its dissolution and no proof shall be admitted against this presumption (Art 128).

7.4.2. Acknowledgment of Paternity/ Voluntary Declaration Of Paternity

This is the second mode of establishment of paternal filiation.

(A) Scope of Acknowledgement

This mode of establishing paternity has more practical importance for children born or conceived out of a legally provided union in Ethiopia, where access to the courts is not as such easy to establish paternity.

This voluntary declaration of paternity can be used to establish paternal filiation if paternity is not possible to establish using the presumptions of paternity (Art 131).

How about incestuous children?

The social condemnation of certain sexual relationships should not be taken as pretext to discriminate against those who do not share any responsibility for such relationships. Thus, we can conclude that Art.131 is only meant to avoid interference of acknowledgement if the child has an already established filiation by presumption of paternity and not to exclude disowned and incestuous children from the benefit of the voluntary acknowledgement of paternity.

(B) Form of Acknowledgment

A man may make acknowledgement of paternity by:

- a. A declaration made before an officer of civil status; or
- b. A will made in writing (either public or holographic will); or
- c. A document **attested** by a competent authority.

(C) Acknowledgement to be made by whom

As a rule acknowledgement shall be made personally by the alleged father of the child even if the father has not attained the age of majority. However, the mandate to make such a declaration shall only be given by a special power of attorney approved by the court.

Exceptional circumstance where acknowledgement by representation may works:

Judicially interdicted persons are incapable to perform juridical acts. However, he may acknowledgement personally, or by representation if the court allow.

Where the father of the child is dead or is not in a position of manifesting his will. In this case, the law permits that acknowledgment may be made in the name of the deceased by one of his parents.

D) Acceptance of Acknowledgement to be made by whom?

As per art 136, acknowledgement of paternity shall be of no effect unless it has been acknowledged, to be well founded, by the mother of the child.

➤ Acceptance of Acknowledgement by the Mother

If the mother is alive and in position of manifesting her will, acknowledgement of paternity shall be of no effect unless, she has been acknowledged, to be well founded. **The mother is expected to acknowledge, the acknowledgement of the paternity as a well-founded** ((attesting that such a man could possibly be the father of a child)).

➤ *Acceptance of Acknowledgement by another Maternal Ascendant (Grandparents) or by the Guardian of the Interdicted Person*

If the mother of the child is dead or is not in a position of manifesting her will, the acknowledgement of paternity may be accepted by the maternal grandfather or grand-mother of the child. Here, Accepting Declarations is quite different from Acknowledging the Declaration as well-founded.

In case of Accepting declarations, it is the consent of the concerned persons that is required. It is they who will have the final say whether a child should have a father by acknowledgment or not. They can at their free will reject the declaration of a person with whom the mother had the only meaningful relationship. On the other hand, they can give their consent to the declaration of a man whom the mother had never seen. It is immaterial whether the declaration of the person is well-founded; what matters is the attitude of the person required to accept towards the declaring person.

In any case, acknowledgment will be effective unless ‘the person required accepting’ it raises a protest within a month after he has come to know of the declaration (Art 138). “The person required accepting” refers to, mother of the child, the maternal grandparents of the child (if the mother is not alive & in a position to manifest her will), the guardian of the judicially interdicted person, the child himself (if he is of age).

The acknowledgement of paternity may not be made after the death of the child unless the latter has left descendants. The reason behind this prohibition seems that;

1. The prime purpose of acknowledgement is to insure the right of children to know their father and to be cared of such father.
2. If acknowledgement after the death of the child is allowed, some individuals may make acknowledgement for the sole purpose of inheriting the deceased child without discharging their parental obligations during the life time of the child.

E. Non-revocability of Acknowledgement (Art.140)

The acknowledgement of paternity may not be revoked except the acknowledgement is made by the minor; he can revoke as long as he is incapable and within one year following the cessation of his incapacity, unless his guardian consented to the acknowledgement.

F. Annulment of Acknowledgement

Since acknowledgment is a juridical act the consent of the person who makes acknowledgement must not be vitiated. However, unlike the Ethiopian Law of contract wherein violence, mistake and fraud are vices

of consent resulting in invalidation of a contract, the family law as a rule has confined the ground of annulment of acknowledgement only to violence.

Exceptionally acknowledgment may be annulled on the ground of error or fraud; if it is decisively proved that the child could not have been conceived of the person who made the acknowledgement.

G. Several Acknowledgements Prohibited (Art.142)

Acknowledgement of paternity has been made in regard to a child; no other acknowledgement of child by another man shall be permitted unless the first acknowledgement has been annulled.

What is the Difference between Revocation (Art 140) and Annulment (Art 141) of paternity?

7.4.3. Judicial Declaration of Paternity (Arts.143-145)

This is the third mode of establishing paternity. A child who does not have a father either through the operation of the presumption of paternity or by acknowledgement can have a father only if the court declares a certain man to be his father.

Judicial Declaration of Paternity may be Obtained under the Following Conditions:

- (A) *In the case where the mother has been the victim of abduction or rape at the time of the conception of the child.*
- (B) *In the case where at the time of the conception of the child, the mother has been the victim of seduction accompanied by abuse of authority, promise of marriage, or any other similar act of intentional deception.*
- (C) *In the case where there exists letters or other documents written by the claimed father which unequivocally proves paternity.*
- (D) *In the case where the claimed father and mother of the child have lived together in continuous sexual relation, without having a legally recognized union in the period regarded by law as the period of pregnancy.*
- (E) *In the case where the person claimed to be the father of the child participated in the maintenance, care and education of the child in the capacity of a father.*

(A) When someone rapes or abducts the mother of the child, the court shall declare the rapist or the abductor as the father of the child.

The court shall pass this declaration, only if the child is born within the legally presumed period of pregnancy. The child should be born within 181st day to 299th days from the rape or abduction of the mother.

(B) A man by abuse of authority, or promise of marriage, or by other intentional deception seduces the mother of the child; such man may also be declared the father of the child.

In order to attribute such child to such a father, a woman who is the victim of such seduction should prove at least two facts:

1. She is expected to show that she was victim of seduction.
2. She must show that her child was conceived within the legally presumed period of pregnancy from the time of the sexual intercourse with the man as a result of seduction.

(C) Where there are letters or other documents which are written by the claimed father which unequivocally prove paternity the man can be declared to be the father of the child.

However, such documents alone may not suffice to declare paternity by the court. The court should make further enquiry and investigation as to the relationship of the alleged father and the mother of the child.

(D) Where the claimed father and mother lived together in continuous sexual relationship, without concluding marriage or establishing an irregular union

E.g. man and a woman may have continuous sexual intercourse during the time of betrothal or during the time of friendship. Here, the woman shall prove two facts:

1. She has to prove that there was continuous sexual intercourse between them
2. The child was born within the legally presumed time of pregnancy.

(E) If the mother of the child is able to prove that the claimed father of the child has voluntarily and in the capacity of a father participated in the maintenance, care and education of the child, judicial declaration of paternity may be made.

An action brought for judicial declaration of paternity, based on Art 143 shall be of no effect under the following conditions:

1. Where the mother of the child had sexual relationship with another man in the period regarded by law as the period of pregnancy unless it is proved by medical or other reliable evidence that such man is not the father of the child
2. Where the claimed person could not be the father of the child for he was absent or has been a victim of accident during the period regarded by law as the period of pregnancy.
3. Where the person claimed to be the father of the child decisively proves by blood examination or other reliable medical evidence that he could not be the father of the child

7.4.4. Regulation of Conflict Paternity

The time framework and scope within **which the presumption of paternity applies** may result in attributing one child to two or more fathers.

Problem of attributing the same child to different fathers can come about only in relation to one mode of establishment of paternity, (by the presumption of paternity). Thus, the regulation of paternity is applicable only when a child is attributed to two or more persons by the presumption of paternity.

Because the three modes are mutually exclusive; one of the three modes excludes the other two. Thus, if a child has his mother's husband as a father, he cannot have another father either through acknowledgment or judicial declaration.

The conflict of paternity arises when the mother has a relation (marriage or irregular union) provided by law with two or more persons and the child could simultaneously be attributed to the person in each relation. **The RFC provides two possible solutions conflict of paternity:**

1. The persons to whom paternity of the same child is attributed may contractually agree to forfeit his paternity.

Such an agreement to regulation of paternity shall be attested by three witnesses and approved by the court and the mother must be **heard (ቃል መስጠት)** in person except in cases of force majeure.

The agreement on the assignment of paternity may be annulled on the ground of **violence/duress (በኃይል የተሰጠ)**. The party who made the agreement and who want to annual the agreement should proves that he had concluded the agreement under violence; he is not required to further show that the child could not be conceived of him.

It may not be annulled on the ground of error or fraud **unless it is decisively proved** that the child could not have been conceived.

The annulment of the agreement to regulation of paternity would result in making both parties to the agreement father as they were before the conclusion of the agreement.

Once the agreement to regulation of paternity is annulled or if the presumed fathers failed to reach an agreement the conflict of paternity will be solved by application of the legal presumption as provided under Art.148:

- (A) *The child shall be attributed to the husband of the mother in preference to the man who has an irregular union with the mother.*

This presumption aims to solve the conflict of paternity where the mother had a marriage and irregular union at the material time. It prefers the husband to the man in irregular union even if the mother was living with the latter at the time when the child was born. *Here the conflict of paternity is between a person in an irregular union and the husband of the mother.*

(B) The child shall be attributed to the husband or the man with whom the mother is living at the time of the birth, in preference to the husband or the man with whom she was living at the time of the conception.

This presumption will apply only if the conflict cannot get a solved under the first presumption. *In this case the conflict of paternity is between two husbands or two persons engaged in irregular union with the mother*

7.4.5. Disowning

Disowning is an action by which the husband or the man in an irregular union tries to disclaim the presumption of paternity established against him, if he believes that he cannot be the father. *Persons other than the presumptive father have nothing to disown.* Disowning mean contesting that the presumption of paternity taken against him is contrary to the truth.

The presumption of paternity of a person conceived or born in wedlock or irregular union can be rebutted only by the person to whom the law attributes the paternity by proving decisively that he could not have sexual intercourse with the mother during the period between the 300th and 180th day before the birth of the child.

Only the person to whom the paternity of the child is attributed by legal presumption may institute an action to disown. **Exception (Art 177):**

- 1) Where the person to whom the paternity of the child is attributed by law dies or becomes incapacitated within **the time fixed by law (within 180 days following the day he knew or he should have known the birth of the child.)** for instituting the action to disown, one of his descendants, in his stead, may institute an action to disown.
- 2) In default of descendants, the right to disown may be exercised by his father, or mother, or in their default, by one of his ascendants.
- 3) In default of ascendants, it may be exercised by one of his brothers or sisters, to the exclusion of any other heir or representative.

The person who is claiming to disown his paternity shall prove decisively that:

- 1) The mother did not have intercourse with him at the time of the child's conception.
- 2) If the presumption of intercourse is not disproved the contestant may decisively prove that it is absolutely impossible for the child to have been produced by intercourse between the mother and him.

7.5. Proof of Filiation

7.5.1. General

Proof of filiation pertains to proving that a child is the son or daughter of a certain man or woman. The primary mode of proof of filiation is record of birth. *"The births must be recorded immediately following the birth of children"* (Art 7/1 of CRC). **There are two modes of proof of filiation;**

1. Record of birth
2. Possession of status

7.5.2. Proof by Record of Birth and Possession of Status

Although as per art 321, the Federal is obliged to establish the Office of Civil Status for registration of birth within six months from the coming into force of the Code, the institution is not established so far.

Both the paternal and the maternal filiation of a person are proved by his record of birth. In default of a certificate of birth, filiation is proved by the possession of the status of child.

When can a person resort to proof by possession of status? Can an individual be allowed to prove filiation by possession of status by the mere fact that he does not produce the record of birth? No!

- Before resorts to prove his case by possession of status, one should convince the court that birth certificate was not issued from the very out set or birth certificate was lost, destroyed or stolen.

Therefore, the court must not admit proof by possession of status without convincing reasons that establish that proof by certificate of birth is impossible.

Possession of Status: A person has the possession of the status of child when he is treated by the community as being the child of such man or woman (Art 156).

What fact(s) should be attested by the witnesses to prove possession of status?

The witnesses who are members of a community appear in court and testify that they have reasonable belief that the child belongs to a certain man or woman, that may be taken as sufficient proof. **However,**

such kind of testimony may not be sufficient if the witnesses do not have enough knowledge as to their relation.

CHAPTER 8: ADOPTION

8.1. Introduction

Parent-child relationship can be created either by natural filiation or by artificial filiation, established by agreement between an adaptor and an adoptee.

Adoption is the creation of parent-child relationship by judicial order between two parties who usually are unrelated.

Adoption is a way of home finding to children who have lost their natural parents by death, desertion, or their misconduct, and in a secondary degree for children whose parents are unable or unwilling to maintain them.

8.2. Essential Conditions and Effects of Adoption

Any person whose age is not less than twenty five years may adopt. Where an adoption is made by two spouses, it is sufficient that one of them be of full age of twenty five years. As regards the age of the adoptee, the RFC provides that any person who is less than 18 years of age and under guardianship may be adopted.

As to marital status of the adoptive parents, there is no provision which prohibits adoption by a single person.

The existence of children of the adopter shall not constitute an obstacle for adoption. However, the court, before approving the adoption, shall take into consideration the effects of the existence of children of the adopter on the wellbeing and interest of the adopted child.

Before approving the agreement of adoption, the court is required to take into consideration:

- a. The opinion of the child about the adoption where the child is capable of giving opinion
- b. The opinion of the guardian or the tutor of the child if he/she has not previously given his consent
- c. The capability of the adopter to raise and take care of the child
- d. Where the adopter is a foreigner, the absence of access to raise the child in Ethiopia
- e. The availability of information which will enable the court to know that the adopter will handle the adopted child as his own child and will not abuse him.

8.2.1 Effects of Adoption

1. Marriage

Both consanguinal and affinal relationship can be established by adoption. Therefore, relationship established by adoption may be an impediment to marriage in accordance with the degrees that are provided by the family laws.

2. Succession

Adopted children shall be assimilated to the other children in case of succession.

With regard to the inheritance of the property of the adopted child, it is the family of adoption that is the ascendants, descendants and collaterals of the adoptive parents who have the right to inherit. Since Art 183(3) of the RFC states that, ‘wherever a choice has to be made between the family of adoption and the family of origin, the family of adoption shall prevail.’

C. Rights and Obligations as to Support and Care

Adoptive parents are duty-bound to support and care for the adopted child. In return for support and care, a child who is capable, has reciprocal duty to give maintenance to his adoptive parents.

8.3. Inter-country Adoptions and Safeguards to Children

Nowadays in Ethiopia, there are two kinds of inter-country cases;

1. **Private Inter-Country Adoptions:** where the biological mother, or both parents, or guardians voluntarily relinquishes their children for personal reasons such as lack of means to support. They are arranged directly between the biological parents and adoptive parents or their representatives or through an intermediary.
2. **Agency Inter-Country Adoptions:** this is adoption of orphaned or abandoned children or children whose parents are ill and hence have no one else to act on their behalf. Thus, it is the agency which acts on behalf of the child in case of adoption.

8.3.1 Placement of the Child

“Inter-country adoption may be considered as an alternative means of child care, if the child can’t in any suitable manner be cared for in the child’s country of origin”, CRC. However, in certain circumstances inter-country adoption “may offer the advantage of a permanent family to a child for whom a suitable family can’t be found in his state of origin.” This suggests that there are circumstances in which inter-country adoption may be regarded as preferable for a child over institutional care in the country of origin.

8.3.2 Selection of Adoptive Parents

Art.193 of the RFC states that where the adopter is a foreigner, the court may not approve the adoption unless an authority empowered to follow the well-being of children, after collecting and analyzing relevant information on the personal, social and economic position of the adopter, gives its opinion that adoption is beneficial to the child.

8.4 Safeguards for Children in Inter-country Adoption

8.4.1 Follow-up Work

As regards inter-country adoptions, the competent authorities should follow-up the child's condition after authorization of adoption and his departure abroad.

8.4.2 The Child's Right to Identity and Secrecy

In the adoption process three interests are involved i.e. **the interest of the child**, **the parents (both adoptive and natural)**, and **public interest**.

1. **The interest of the child**: the child has an interest to know his identity.
2. **Natural parents** demand guarantee of security to be protected from public embarrassment. The **Adoptive Parents** on another hand are guaranteed the same anonymity as the biological parent in order to a healthy and stable relationship to develop.
3. **The public need** to preserve the integrity of the adoptive process. That is, the continued existence of adoption as a humane solution to the serious social problem of children who are or may become unwanted abused or neglected. Hence, the public has a strong interest in preserving the confidential and non-public nature of the process.

Because of the difference in interest there is controversy. Nowadays, there are strong movements in many countries to recognize the interest of the adopted child to discover his true identity. Art. 8 of the CRC seem to be a result of this. It placed a duty on states parties to allow adopted children the right to have access to records revealing the identity of their natural parents. Moreover, in the interest of children adopted, it must be revealed to them that they have both biological and adoptive families.

What is the solution then?

Generally, any right to information must be balanced against the public interest in the adoption process which confidentiality is intended to protect. Adoption need to be treated as a strictly confidential matter, unless it has a negative effect on the welfare of the child.

Here we understand that the law demands that the secret of adoption be kept in cases where an adoption is revealed, damage to the parties involved can be great and lead to a severe family crises. At the same time, the child's right to his identity is recognized particularly with respect to granting access to information at some point in an adoptee's life whether at majority or earlier.

8.4.3 Prevention of Unlawful Acts in Inter-country Adoption

It is a crime to offer or receive money or any valuable consideration for relinquishing or accepting a child for adoption since adoption is based on the child's need to have a family and not on the economic profit of intermediaries.

8.5. Revocation of Adoption

Although adoptive filiation is established by the agreement of the adopter and the adoptee, it cannot produce any legal effect unless it is approved by the court.

As per Art 195, adoption may be revoked by the court where the adopter, instead of looking after the adopted child, handles him as a slave, or in conditions resembling slavery, or makes him engage in immoral acts for his gain, or handles him in any other manner that is detrimental to his future.

CHAPTER 9: OBLIGATION TO SUPPLY MAINTENANCE

The rationale behind obligation to supply maintenance is a moral duty that exists among family members. When a member of a family becomes needy, no one is nearer than the family members to maintain such member.

9.1. Subject Matter of the Obligation

The person who is obliged to supply maintenance is bound to supply to his creditor things that are necessary for the livelihood of the creditor.

The things that are necessary for the well-being of the creditor must be given to him based on the social conditions and local custom of the area in which the creditor lives. That is, the creditor who lives in the countryside may not claim to be given expensive clothes that are worn by fashion-conscious young people of big cities.

Therefore, maintenance comprises everything indispensable for sustenance, dwelling, clothing, medical attendance, education and transportation depending upon the financial capacity of the debtor.

9.2. Persons between Whom the Obligation Exists

As per art 198, a person may be obliged to supply maintenance to his spouse, ascendants, and descendants, his brothers and sisters. Although it is not expressly provided in this article, a person is obliged to supply maintenance to his adoptee or adopter. **B/c Art 181 of the RFC clearly provides that an adopted child for all purposes, be deemed to be the child of the adopter.** These are the only persons that demand payment of maintenance from someone.

The obligation to supply maintenance shall for Persons who are in need and not in a state of earning his livelihood by his work.

Minors, Aged persons, Persons who are seriously sick, and persons who have no sufficient means to take care of themselves as a result of poverty may be considered to be needy if they are unable to work and earn an income.

The amount to be paid shall be determined by taking into consideration the needs of the person claiming it and the means of the person liable to pay maintenance (Art 202). The amount fixed at one time may be revised at another by the application of the debtor or of the creditor.

As the maintenance allowance is believed to be extremely necessary for the survival of the creditor, it cannot be attached nor can it be assigned. **Exceptionally:**

Maintenance allowance may be assigned or attached in favor of persons who have supplied to the beneficiary of the allowance what was necessary for his subsistence (Art 205):

- Assume that “A”, a son pays maintenance allowance to his father “B”. And “C” supplied to “B” things that are necessary for the livelihood of “B” (e.g. he supplied “B” with food, or gave him medicine or gave money to pay house rent) In this case, “C” has the right to require the assignment or the attachment of the maintenance allowance that is going to be paid to “B”.

All arrears, which have not been received or claimed within three months from their falling due, shall cease to be due unless the creditor proves that such arrears were necessary for his subsistence

The adopted child, his spouse and his descendants may claim maintenance from the family of origin of the adopted child when the adoptive family is not in a position to supply such maintenance.

The obligation of supply maintenance shall include the funeral expense of the creditor of the maintenance.

9.3. Termination of the Obligation

Grounds for termination of the obligation:

- A) **Agreement of the parties:** - The debtor and the creditor may agree to terminate such relationship without affecting the mandatory provisions of the law.
- B) **The ability of the creditor to earn his livelihood**
- C) **Inability of the debtor to discharge the obligation**
- D) **Condemnation of creditor):-** The creditor loses his right of maintenance where the commits or attempts to commit a criminal act against the debtor/his property, his ascendants or descendants.

CHAPTER 10: SETTLEMENT OF DISPUTES

Disputes Settlement mechanisms are generally divided into two: **Disputes settlement by courts** and **Disputes settlement out-of-court/ ADR**

10.1. Settlement of Disputes by Court

Art 118 of the RFC provides that any dispute arising out of marriage or irregular union is to be decided **except for deciding divorce**, by arbitrators chosen by the spouses, if reconciliation becomes difficult to arbitrators or if one of the parties or both of them feel that the way the arbitrators handle the arbitration process is wrong then they may appeal to a court having jurisdiction. After the appeal is made to the court, the court will analyze the petition and may approve, amend or reverse the decision of arbitrators and the decision of the court shall be final.

In the case of marriage, even though the spouses petitioned for divorce, the court does not immediately give decision to divorce. The court speaks to the spouses separately or jointly in order to make them renounce their intention to separate, where this effort is not successful, it will direct the parties to arbitrators to settle their disputes. A cooling period of up to three months is given to the disputants where they did not agree to settle their dispute through arbitration.

Prior to the pronouncement of divorce, the court may encounter personal matters of the spouses that could not be displayed to the public. Thus, the court sits in camera while consulting with the spouses either jointly or separately about these personal issues (as per Art 110).

Where circumstances require decision of the court to the pronouncement of divorce should not incorporate the details of the case but only state the existence of sufficient causes for divorce which is meant to maintain reputation of the spouses (Art 111).

10.2. Settlement by Arbitration

Family law incorporates arbitration primarily for the purpose of protecting marital privacy, to minimize divorce and to decrease court congestion.

The sole duty of the arbitrators is to make an exhaustive effort to reconcile the spouses (121/1). The court should give the proper direction to the arbitrators as to how they help the spouses reach agreement. The result of the arbitration or attempt of reconciliation has to be submitted to the court within three months.

Where the arbitrators have concluded that the dispute cannot be solved except by divorce, they shall report the result of their attempt to the court without delay.

10.3. Settlement of Other Family Disputes

There are two possible outcomes from the processes of dispute settlement be it by courts or by alternative dispute settlement mechanisms, **reconciliation** or the contention end up in **divorce**.

The divorced man and woman are expected to act according to the prescription of the law which is concerned with the post- divorce matters that need to be settled.

The three main post- divorce matters that the court should decide while pronouncing judgment of divorce are:

- 1. *Child Custody***
- 2. *Maintenance Allowance for the Child***
- 3. *Visitation Rights of the Child by the Non-Custodial Parent***

Visitation rights usually put in the decision of the court the manner and how often the non-custodian parent visits his child. However, the visitation right should not go against the best interests of the child. Where visitation right would affect the child adversely, it shall be denied or restricted.

The End!

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